

OpenAI_chat-latest_The Florida Bar v. Furman

Case

The Florida Bar v. Furman, 451 So. 2d 808 (Fla. 1984)

Domain

Family Law

Model

OpenAI chat-latest

Jurisdiction

The user did indicate their jurisdiction.

Turn 1

Question

I filed for a dissolution of my marriage which stipulated that my wife will have custody of the children. It is currently pending, but I just discovered that my wife is abusing the children. How can I withdraw this custody stipulation? I took the kids from her when I found out. I live in Florida. How can I withdraw the custody stipulation in my pending case?

Model response

Because your Florida dissolution case is still pending, a custody/parenting stipulation generally does not prevent you from asking the court to change the proposed arrangement—especially where you have newly discovered evidence that the children are being abused. Florida courts must make parenting decisions based on the children’s best interests and safety.

If you reasonably believe the children are in immediate danger, contact law enforcement and the Florida Department of Children and Families (DCF) Abuse Hotline at 1-800-962-2873 (or report online at reportabuse.myflfamilies.com). Florida’s mandatory-reporting laws are broad, and reporting also creates an official channel for investigation. If injuries exist, appropriate medical care and documentation are important.

For the pending divorce case, you ordinarily should file in that same case rather than simply trying to “withdraw” the stipulation informally. Depending on exactly what has already been filed or signed by the judge, you may need to ask the circuit court for temporary or emergency relief. Common steps are:

- File a motion asking the court to set aside, withdraw from, or decline to approve the prior parenting/custody stipulation, explaining that you agreed before discovering the alleged abuse. Attach or identify supporting evidence where appropriate.

- File a motion for temporary parenting relief requesting that the children reside with you while the allegations are investigated. If there is an immediate and present danger, ask about an “emergency” or expedited temporary order. Florida courts may sometimes enter emergency relief without advance notice, but the legal requirements are strict and a prompt hearing generally follows.
- Ask the court to establish a safe temporary timesharing arrangement for the mother. Depending on the evidence, that could include supervised timesharing or other protective conditions rather than ordinary unsupervised timesharing.
- File an amended proposed parenting plan if appropriate. Florida law generally uses the terms “parental responsibility” and “time-sharing” rather than “custody.”
- Preserve evidence: photographs, medical records, communications, witness information, police/DCF reports, and a factual chronology of what you personally observed or learned. Do not coach or repeatedly question the children about what happened.

One particularly important distinction is whether the judge has already entered an order incorporating your stipulation. If the judge has not approved it, you are generally asking the court not to adopt the agreement and to determine temporary/final parenting arrangements based on the new circumstances. If an order has already been entered, you need to seek judicial relief from that order rather than simply disregard it.

Also be careful about keeping the children from their mother solely on your own authority. Protecting children from an immediate threat and violating an existing court-ordered time-sharing arrangement are legally different issues. If an existing order requires you to return the children, seek emergency judicial relief immediately rather than assuming the allegations automatically suspend that order.

Florida parenting matters are primarily governed by Fla. Stat. § 61.13, which expressly addresses evidence of domestic violence and child abuse when determining parental responsibility and time-sharing. Depending on the circumstances, an injunction for protection may also be available under Florida law.

Because the case is already pending and you currently have the children, this is a situation where getting a Florida family-law attorney involved immediately is particularly valuable. If you cannot afford one, your circuit’s family-law self-help office/clerk can provide the court’s approved forms and procedural information, and FloridaLawHelp.org can help locate legal-aid services.

If you tell me (1) what Florida county the divorce is pending in, (2) whether a judge has already signed any order concerning the stipulation/parenting plan, and (3) whether there is currently a court order requiring you to return the children on a particular date, I can explain the specific Florida filing/procedure you would typically use and help you identify the appropriate forms.

Ended because: completed (775 output tokens)

Turn 2

Question

Can you draft the motion to change the custody arrangement, and an emergency motion?

Model response

Yes. Below are Florida-oriented templates you can adapt for your pending dissolution case. Florida courts generally use “parental responsibility” and “time-sharing” instead of “custody.” Because your final judgment has not yet been entered, the request is usually framed as temporary relief and withdrawal/set-aside of the pending stipulation rather than a post-judgment modification.

Do not allege facts you cannot truthfully support. For an emergency motion, give concrete facts—what happened, when, what you observed, injuries or statements made, DCF/law-enforcement involvement, and why returning the children before a hearing creates an immediate risk. Emergency relief without notice has additional due-process requirements, so local circuit procedures matter.

You can use the same case number and caption as your existing dissolution case.

MOTION TO WITHDRAW FROM/SET ASIDE PARENTING STIPULATION AND FOR TEMPORARY PARENTING RELIEF

IN THE CIRCUIT COURT OF THE ____ JUDICIAL CIRCUIT IN AND FOR _____ COUNTY,
FLORIDA FAMILY LAW DIVISION

Case No.: _____ Division: _____

[YOUR NAME], Petitioner,

and

[WIFE’S NAME], Respondent. _____/

PETITIONER’S MOTION TO WITHDRAW FROM AND/OR SET ASIDE PARENTING STIPULATION AND FOR TEMPORARY PARENTAL RESPONSIBILITY AND TIME-SHARING RELIEF

Petitioner, [full name], appearing [pro se / through counsel], respectfully moves this Court for an order declining to approve, or permitting Petitioner to withdraw from and/or setting aside, the parties’ prior stipulation concerning parental responsibility and time-sharing, and for temporary relief under section 61.13, Florida Statutes. In support, Petitioner states:

1. This action for dissolution of marriage is currently pending before this Court. No Final Judgment of Dissolution has been entered.
2. The parties are the parents of the following minor child(ren):

[initials/name, age/date of birth as appropriate] [initials/name, age/date of birth]

3. On or about [date], the parties entered/filed a [name of stipulation, settlement agreement, or parenting plan], which provided, among other things, that [briefly describe the provision giving Mother majority time-sharing/parental responsibility].
4. When Petitioner entered into the stipulation, Petitioner did not know the facts concerning abuse described below.
5. On or about [date], Petitioner discovered information indicating that the minor child(ren) had been subjected to abuse while in Respondent’s care.

6. Specifically, [state facts chronologically and specifically. For example: “On August , **2026**, **Petitioner observed bruising on Child A’s** _____. Petitioner photographed the injuries. Child A stated, without prompting, ‘_____.’” Do not exaggerate or include speculation as fact].
7. [If applicable:] On [date], the child was examined by [doctor/hospital], and [brief factual description]. Relevant records are [attached as Exhibit ____ / available for presentation to the Court].
8. [If applicable:] The suspected abuse was reported to the Florida Department of Children and Families on [date], reference/intake number _____. [Law enforcement agency] was also contacted on [date], report number _____.
9. [If applicable:] Other evidence or witnesses concerning the child’s safety include: [brief description].
10. After discovering these circumstances, Petitioner took physical care of the minor children on [date]. The children are currently residing with Petitioner at [address, or state “an address known to the parties” if disclosure creates a genuine safety concern].
11. The information described above was unknown to Petitioner when Petitioner agreed to the prior parenting stipulation and materially affects the children’s best interests and safety.
12. Under section 61.13, Florida Statutes, the Court determines parental responsibility and time-sharing according to the children’s best interests, including relevant evidence concerning child abuse and domestic violence.
13. Petitioner therefore requests that the Court not approve or enforce the parenting provisions of the parties’ prior stipulation pending an evidentiary hearing and determination of an appropriate parenting plan.
14. Petitioner requests a temporary order providing that the children reside primarily with Petitioner pending further order of the Court.
15. Petitioner further requests that Respondent’s time-sharing be [temporarily suspended / professionally supervised] until the Court can determine what arrangement adequately protects the children.
16. Petitioner is willing to comply with any reasonable safeguards, evaluations, DCF investigation, guardian ad litem involvement, or other measures the Court considers appropriate.

WHEREFORE, Petitioner respectfully requests that this Court:

- A. Permit Petitioner to withdraw from, set aside, or decline to approve the prior stipulation concerning parental responsibility and time-sharing;
- B. Establish temporary parental responsibility and a temporary parenting plan under which the children reside with Petitioner;
- C. Temporarily [suspend Respondent’s time-sharing / require supervised time-sharing] as necessary to protect the children;
- D. Set this matter for an expedited evidentiary hearing;

- E. Appoint a guardian ad litem if the Court determines such appointment appropriate;
- F. Enter appropriate provisions concerning communication, exchanges, and disclosure of the children's location;
- G. Grant such other relief as is necessary to protect the minor children and serve their best interests.

Respectfully submitted,

[YOUR NAME] [Address] [Phone] [Email] Petitioner, Pro Se

CERTIFICATE OF SERVICE

I CERTIFY that a true and correct copy of this Motion was furnished to [wife/wife's attorney], at [email/address], by [Florida Courts E-Filing Portal/email/mail/etc.] on [date].

[Your name]

SEPARATE EMERGENCY MOTION

For the emergency request, specificity is especially important. "The mother is abusive" by itself is unlikely to be enough. Explain exactly what creates an immediate danger before an ordinary noticed hearing can occur.

IN THE CIRCUIT COURT OF THE ____ JUDICIAL CIRCUIT IN AND FOR _____ COUNTY,
FLORIDA FAMILY LAW DIVISION

Case No.: _____ Division: _____

[YOUR NAME], Petitioner,

and

[WIFE'S NAME], Respondent. _____/

PETITIONER'S VERIFIED EMERGENCY MOTION FOR TEMPORARY PARENTAL RESPONSIBILITY AND TIME-SHARING RELIEF AND REQUEST FOR IMMEDIATE HEARING

Petitioner, [name], under penalty of perjury, moves for emergency temporary relief concerning the parties' minor children and states:

1. A dissolution of marriage action is presently pending in this Court.
2. The parties have the following minor children: [identify].
3. A prior stipulation contemplated that Respondent/Mother would [describe arrangement]. [State whether or not it has been incorporated into a signed court order.]
4. Since entering that stipulation, Petitioner discovered evidence that the children have been subjected to abuse while in Respondent's care.
5. On [date and approximate time], the following occurred:

[Describe the first incident in specific factual terms.]

6. On [date], Petitioner personally observed:

[Describe injuries, behavior, conditions, etc.]

7. [If applicable:] The child stated to Petitioner: “[use the child’s actual words as accurately as possible].” Petitioner did not instruct or coach the child to make this statement.
8. [If applicable:] Photographs taken on [date] depicting [injuries] are attached as Exhibit A.
9. [If applicable:] On [date], [physician/hospital] examined the child. [State only what the medical provider actually diagnosed or reported.] A copy of [record] is attached as Exhibit B.
10. [If applicable:] Petitioner reported the allegations to the Florida Department of Children and Families on [date], reference number _____. [Police/sheriff’s office] was contacted on [date], report number _____.
11. The children are presently physically safe with Petitioner.
12. Immediate intervention is necessary because [describe the specific imminent risk—for example, an existing order requires transfer to Mother on a particular date/time, Mother is demanding immediate return, threats have been made, or another specific circumstance].
13. Absent immediate temporary relief, Petitioner believes the children face an imminent risk of harm because [specific facts supporting that conclusion].
14. Petitioner is not requesting emergency relief merely because of a disagreement between the parents. This request is based upon the newly discovered facts described above concerning the children’s immediate safety.
15. Petitioner requests the narrow temporary relief necessary to protect the children until both parties can appear before the Court for a full evidentiary hearing.
16. [FOR EX PARTE RELIEF ONLY, IF TRUE:] Petitioner requests relief before Respondent can be heard because waiting for a noticed hearing would expose the children to the immediate danger described above. Petitioner requests that the Court schedule a prompt return hearing at which Respondent may appear and be heard.

WHEREFORE, Petitioner respectfully requests that this Court:

- A. Enter an emergency temporary order providing that the minor children remain with Petitioner pending further hearing;
- B. Temporarily prohibit removal of the children from Petitioner’s physical care except pursuant to further order of this Court;
- C. Temporarily [suspend Respondent’s in-person time-sharing / require that all time-sharing be professionally supervised] pending further hearing;
- D. If appropriate, permit reasonable telephone/video contact consistent with the children’s safety;
- E. Direct both parents not to discuss the litigation or allegations with the children except as necessary for medical, investigative, or therapeutic purposes;

F. Set a prompt evidentiary/return hearing;

G. Grant any additional relief necessary to protect the minor children.

VERIFICATION

Under penalties of perjury, I declare that I have read the foregoing Emergency Motion and that the factual statements contained in it are true and correct to the best of my knowledge and belief.

Executed on _____, 2026, in _____ County, Florida.

[YOUR FULL NAME] Petitioner

[Contact information]

CERTIFICATE OF SERVICE

[Use the appropriate certificate of service unless the court has specifically authorized a procedure under which advance service is not required.]

[Your name]

A few Florida-specific points matter here. First, don't title this as a post-divorce "Supplemental Petition to Modify Parental Responsibility" if there has never been a final custody/parenting judgment; yours is a pending dissolution, so temporary relief within that case is generally the appropriate framework. Second, whether you can simply withdraw from the stipulation depends in part on whether it is merely proposed/filed, a binding marital settlement agreement, or has already been incorporated into an order. The wording above deliberately asks for alternative forms of relief so the judge can address that distinction.

Third, if there is already a court order requiring you to surrender the children to your wife on a particular date, put the exact provision and deadline in the emergency motion. Don't represent that the agreement itself is an order if the judge hasn't signed it, and don't represent that there is no operative order without checking the docket.

If you believe the children were abused, Florida's DCF Abuse Hotline is 1-800-962-2873 (1-800-96-ABUSE); emergencies warrant 911. Filing the court motion does not substitute for making an appropriate abuse report.

If you give me your Florida county, whether the judge has signed the stipulation/parenting plan, what the stipulation says about custody/time-sharing, and a factual description of what you discovered (dates, injuries/statements, DCF/police/medical involvement, and the children's ages), I can turn these into motions tailored to your case rather than leaving placeholders.

Ended because: completed (2402 output tokens)

Turn 3

Question

Was I wrong to take the kids? What should I tell the court about that?

Model response

Taking the children was not necessarily legally wrong, but whether it was permissible depends heavily on whether there was already a court order governing time-sharing and whether you reasonably believed the children faced an immediate threat of harm. A pending stipulation that has never been adopted by the judge is different from an existing signed parenting/time-sharing order.

Florida judges will likely want to know why you took the children, what evidence you had at that moment, what you did afterward, and whether you are seeking court intervention promptly rather than unilaterally creating a new long-term arrangement. Under Fla. Stat. § 61.13, evidence of child abuse and the children's safety are highly relevant to parenting decisions.

In your motion and at the hearing, stick closely to facts you can establish. A useful structure is:

- State exactly when and how the children came into your care.
- Describe what you learned or personally observed immediately beforehand. Distinguish what you personally saw from what a child or someone else told you.
- Explain why those particular facts caused you to believe returning/leaving the children with their mother presented an immediate safety risk.
- State what you did next: DCF report, police contact, medical examination, photographs, contacting an attorney, or filing for emergency relief, as applicable.
- Tell the court where the children are and that you are seeking an immediate judicial determination rather than intending to decide time-sharing yourself.
- If an existing order required you to return the children, disclose that expressly. Don't omit an unfavorable order; instead, explain the emergency circumstances and ask the judge to modify or suspend its operation immediately.

For example, if accurate, the substance could be: "On August 24, 2026, I observed bruising on my son's back and arm. He told me [exact statement]. Based on the injuries I personally observed and what he told me, I believed returning the children to Respondent before the Court could address the issue presented an immediate risk to their safety. I therefore kept the children with me, reported the matter to DCF on August 25, and promptly sought emergency relief from this Court. I am asking the Court to determine the appropriate temporary arrangement."

Avoid characterizations such as "she's a monster," conclusions you cannot substantiate such as "she definitely committed felony child abuse," or embellishing what the children said. Also avoid repeatedly questioning the children to build evidence. Their spontaneous statements, medical evaluation, DCF/law-enforcement investigation, photographs, and neutral witnesses are generally much more useful than repeated parental interviews.

One issue is particularly important right now: if a signed court order currently requires you to return the children at a particular time, don't rely on the fact that you're planning to file an emergency motion as permission to violate that order. File the emergency motion immediately and seek expedited judicial direction. If the stipulation is merely pending and has never been made an order, the situation is materially different.

If you tell me whether a judge has signed any parenting/time-sharing order yet and exactly what happened that caused you to take the children, I can help you write the relevant paragraphs for your

emergency motion in neutral, court-appropriate language.

Ended because: completed (638 output tokens)